

of transfer served on all parties as required by Code of Civil Procedure section 399(b). It is important to note that each document originally filed in Sacramento County and then transferred to Placer County bears the original file-stamp from Sacramento County and the June 10, 2021 file-stamp from Placer County.

Plaintiff understands Section 399's requirement that the court "shall have and exercise over the action or proceeding the like jurisdiction as if it had been originally commenced in that court, all prior proceedings being saved" means that the transferee court must file-stamp all documents the same date that they were file-stamped by the transferor court. The court has searched but is unable to find any legal authority interpreting this language the way plaintiff does, nor has the court located any legal authority that would permit the transferee court clerk to file-stamp a date prior to the date of transfer. Plaintiff has failed to show a clerical error in need of correction within the meaning of Code of Civil Procedure section 473(d).

The motion is denied.

7. S-CV-0050791 Conrad, Ethan v. Gill, Manpreet

Plaintiff's motion for attorneys' fees and prejudgment interest is continued to be heard on **July 14, 2026 at 8:30 a.m. in Department 42**. Plaintiff seeks an award of attorneys' fees as prevailing party after the court granted plaintiff's motion for summary judgment. (Ruling on Submitted Matter, Dec. 8, 2025.) However, there is no evidence plaintiff served the notice of entry of order on defendant. Moreover, plaintiff has not submitted any proposed judgment to the court. Plaintiff is directed to forthwith file and serve a notice of entry of order for the court's December 8, 2025 ruling and to submit a proposed judgment following summary judgment for the court's review.

8. S-CV-0051034 Martinez, Kari v. Acosta, Angelina Aka Rey-Herrera

Motion to Compel Deposition of Defendant's Attorney Robert Gonzalez under CCP § 2025.450; and to Recuse Defense Counsel under California State Bar Rule 3.7; Sanctions Requested

Plaintiff moves to compel the deposition of defendant's attorney Robert Gonzalez. Defendant has not filed a response.

The Court of Appeal has outlined the standard for a motion to depose opposing counsel:

Depositions of opposing counsel are presumptively improper, severely restricted, and require "extremely" good cause—a high standard. (*Spectra-Physics, Inc. v. Superior Court* (1988) 198 Cal.App.3d 1487, 1493.) See *Trade Center Properties, Inc. v. Superior Court* (1960) 185 Cal.App.2d 409, 411.) There are strong policy considerations against deposing an opposing counsel. The practice runs counter to the adversarial process and to the state's public policy to "[p]revent attorneys from taking